RESOLUTION NO. 7390

Seismic Construction Projects: Exemption from Competitive Bidding and Authorization for Use of Requests for Proposals Contracting Method

RECITALS

A. The Board of Directors of Portland Public Schools ("District") is the Local Public Contract Review Board ("Board") pursuant to ORS 279A.060.

B. ORS 279C.335(2) authorizes the Board to exempt certain public contracts or classes of contracts from the standard competitive bidding process otherwise required by the Public Contracting Code and Rules upon certain findings.

C. In a duly and legally held election on May 20, 2025, general obligation bonds were approved by a majority of the qualified voters of Portland Public Schools voting at the election (“2025 Capital Improvement Bonds”).

D. The District intends to perform seismic upgrades at five schools: Beverly Cleary – Fernwood, Richmond, Capitol Hill, Ainsworth, and Kelly as part of the 2025 Capital Improvement Bond work. Capitol Hill and Richmond Roofs also include funding from the 2017 approved bond.

E. Staff has determined that use of the Request for Proposal (“RFP”) alternative contracting method is the preferred method of delivery for these critical seismic projects. This determination is supported by draft Findings of Fact ("Draft Findings") presented to the Board pursuant to ORS 279C.335.

F. These Draft Findings specify the advantages gained through use of the RFP contracting method.

G. On September 18, 2026, the District issued a public notice in the Daily Journal of Commerce announcing the District’s intent to utilize the RFP alternative contracting method for the specified seismic projects. The notice was issued in compliance with ORS 279C.335 and the PPS Public Contracting Rules. The Draft Findings were made available for public review on the date of publication. The notice included instructions for requesting a public hearing on the request for exemption from competitive bidding.

H. The District received no requests for a public hearing.

I. The Superintendent recommends approval of the exemption from Competitive Bidding and approval of the RFP alternative contracting method for solicitation and completion of the five seismic projects named above.

‘RESOLUTION

1. The Board hereby adopts the Draft Findings in support of use of the RFP alternative contracting method for the specified seismic projects (“Findings”).

2. The Board hereby exempts the specified seismic projects from competitive bidding requirements as provided in ORS 279C.335 and PPS Public Contracting Rules -49-0600 through PPS-49-0690. The exemption is based upon the Findings pursuant to ORS 279C.335(2).

3. Pursuant to these Findings and decision, the Superintendent or her designee is hereby authorized to conduct a RFP alternative contracting process for the specified seismic projects.